



FOI in the Digital Age: Challenges in Localizing Freedom of Information Across Philippine Governance

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Introduction

The people's right to information on matters of public concern is enshrined under Section 7, Article III of the 1987 Constitution of the Republic of the Philippines.¹ This constitutional mandate is a fundamental pillar of democratic accountability established by the Supreme Court as self-executing, which the people may assert without need for any ancillary act of the Legislature.² Albeit a statutory law would give clarity and enforceability to this provision, there has yet to be legislative enactment. However, it was partially operationalized for the Executive Branch through Executive Order No. 2, series of 2016, wherein "Every Filipino shall have access to information, official records, public records, and documents and papers pertaining to official acts, transactions or decisions, as well as to government research data used as basis for policy development."³

The issuance of this executive order was shortly followed by the launch of a digital platform, better known as the Electronic Freedom of Information (EFOI) website. Afterwards, the Presidential Communications Office (PCOO) and the Department of Interior and Local Government issued a Joint Memorandum Circular (JMC) that provides guidelines and mechanisms for operationalizing the national Freedom of Information (FOI) Program down to the local level.⁴ The JMC however, only 'encourages' Local Government Units (LGUs) to adopt the program. In this regard, the PCOO in 2021 has noted that 59 LGUs have successfully passed their own FOI ordinance⁵, which makes the adoption rate far from universal.

¹ (The 1987 Constitution, [February 2, 1987])

² (Legaspi v. Civil Service Commission, G.R. No. 72119, (29 May 1987), 234 Phil 521-537)

³ (Operationalizing in the Executive Branch the People's Constitutional Right to Information and the State Policies to Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor, Executive Order No. 2, [July 23, 2016])

⁴ PCOO, DILG issue circular on FOI compliance; all LGUs covered

⁵ List of Provinces and Cities in the Philippines with FOI Local Ordinances



However noble the initiative may be, the efficacy of the FOI program encounters its most significant test in implementation in FOI Localization. It is crucial therefore to assess the friction points from the voluntary adoption of the FOI program, and whether its uneven implementation across LGUs compromises the universal nature of the constitutional right to freedom of information.

LGU Jurisdiction and the Right to Information

The right to information is founded on the State's commitment to public disclosure, particularly given emphasis in Section 28, Article II of the 1987 Constitution, wherein subject to reasonable conditions prescribed by law, the State adopts and implements a policy of full public disclosure of all its transactions involving public interest.⁶

For the Executive Branch, the e-FOI portal streamlines this access. However, LGUs, which are granted substantive autonomy under the Local Government Code of 1991, have varied in their response, often dependent on local political will and fiscal capacity. As of 2022, the Open Government Partnership Organization reports that 89 local FOI ordinances have been passed in the country, the implementation of which remains uneven due to gaps in capacity, limited guidance, and varying levels of commitment.⁷

Several legal studies have emphasized that the constitutional right to freedom of information is self-executing, however, it must also be noted that its mechanisms for access are "subject to such limitations as may be provided by law."⁸ And the administrative reality to this is, absent a clear law or directive, the processing of FOI requests, more so the digitization of FOI in LGUs often default to manual, slow, or inconsistent systems, undermining the spirit of its mandate, and casting a doubt on how freedom of information shall play out in the digital revolution.

⁶ The Constitution of the Republic of the Philippines

⁷ OGP Co-Create a Framework to Implement Local RTI Ordinances

⁸ Article III, Section 7 of the Bill of Rights.



Points of Doctrinal and Administrative Friction

The localization of FOI mechanisms, particularly the eFOI generates three primary challenges that compromise the principle of uniform access:

A. The Digital Divide as a Barrier to Constitutional Right

The digital revolution is defined as the change from analog, mechanical, and electronic technology to digital technology with the adoption and proliferation of digital computers and digital record keeping that continues to the present day.⁹ Consequent to the digital revolution, however, is the digital divide, which simply put, is the gap between those who can access digital technology and those who cannot.¹⁰

This brings us to the point that the e-FOI portal, by its very nature, is a digitally-mediated process. While intended to broaden access, it simultaneously reinforces the existing digital divide in the Philippines. The PIDS reports that “despite progress in recent years, significant disparities in access and affordability remain, particularly in rural areas.”¹¹ This challenge frequently falls under the jurisdiction of marginalized communities in resource-constrained LGUs, which could be tantamount to de facto exclusion.

When the digital platform, designed to eliminate bureaucratic hurdles, paradoxically establishes a technological one, the exercise of the fundamental right information becomes essentially restricted to only the digitally-enabled citizenry. This leads us to ponder on whether the disparity constitutes a violation of the principle of universal access, as LGUs cannot merely create an online platform and expect the eFOI mandate to be fulfilled when its constituents lack the means to the very technology that is necessary to access online portals.

⁹ Surging Waves of the Digital Revolution in the Twenty-First Century

¹⁰ Awati, Hanna. "What is the Digital Divide and How is It Being Bridged?"

¹¹ Bridging digital divide: PIDS study reveals path to universal broadband in PH



B. The Fiscal Hurdle in Implementation of the e-FOI mandate

Local autonomy is constitutionally guaranteed¹² and operationalized through the Local Government Code of 1991. This means that LGUs have the right to generate and control local revenues¹³ and allocate them according to how they see fit. However, the mandate to operationalize e-FOI requires considerable investment in dedicated IT infrastructure, network security, and specialized human capital—resources that smaller or lower-income LGUs often lack.

The voluntary nature of the e-FOI mandate makes its enactment discretionary among LGUs, and where some would rather spend on essential services like healthcare, education, or infrastructure, the allocation of funds for digitization in line with the FOI mandate is transformed into a contingent political outcome rather than a constitutional right.

C. Navigating FOI Amidst Data Privacy

The disclosure mandate of the FOI and protection of personal data under the Data Privacy Act (DPA) of 2012 is perhaps one of the greatest legal frictions in the digital revolution.

The DPA imposes strict penalties and requires the establishment of rigorous security and data processing protocols.¹⁴ Meanwhile, the FOI mandates that there shall be disclosure of information, subject to the limitations of the law. With the onset of digitization, LGUs may become susceptible to the risk of unlawful or accidental disclosure via the e-FOI system, particularly with regard to sensitive personal information related to health, financial aid, and civil registry.

¹² The 1987 Constitution of the Republic of the Philippines, Art. X Sect. 2

¹³ Principles of Local Autonomy | LAW ON LOCAL GOVERNMENTS

¹⁴ Republic Act No. 10173, the Data Privacy Act of 2012



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For both mandates to not encroach on each other, it is therefore necessary that a balance between the release of the requested information and a meticulous redaction of personal data subject to the DPA must be maintained; otherwise, LGUs may face civil or administrative liabilities for non-compliance. This demands a more advanced level of technical assistance, and more clearly established guidelines.

FOI in the Philippines: Where must we go from here?

The initiative to localize FOI in the Philippines reveals serious challenges, not only in the execution of this constitutional mandate but also with where the country stands amid the digital revolution. Where the efficacy of implementing the constitutional mandate of the freedom of information depends on the technological and administrative capabilities of LGUs, one crucial thing must be taken into greater consideration: the passage of an all-encompassing Freedom of Information Law that shall institutionalize and harmonize all government efforts towards gearing FOI into the digital world, making it a genuinely universal constitutional right.



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